

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CLCR052530: BLACKSTONE HAMILTON vs THE REGENTS OF THE
UNIVERSITY OF CALIFORNIA, A PUBLIC ENTITY DOING BUSINESS AS UCLA
HEALTH, et al.**

07/27/2026 in Department 43

- 1. Defendants' Demurrer to 2nd Amended Complaint**
- 2. Plaintiff's Motion for Leave to File 3rd Amended Complaint**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion:

1. Defendants' Demurrer to 2nd Amended Complaint
2. Plaintiff's Motion for Leave to File 3rd Amended Complaint

Tentative Rulings:

- 1. Defendants' Demurrer to 2nd Amended Complaint**

Defendants' Demurrer to 2nd Amended Complaint is OVERRULED.

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The Unruh Act (Civ. Code, §51) does not make actionable all distinctions made by business establishments amongst persons. (*Howe v. Bank of America N.A.* (2009) 179 Cal.App.4th 1443, 1450, citing *Sunrise Country Club Assn. v. Proud* (1987) 190 Cal.App.3d 377, 381 and *Pizarro v. Lamb's Players Theatre* (2006) 135 Cal.App.4th 1171, 1174.). “[T]he objective of the Act is to prohibit businesses from engaging in unreasonable, arbitrary or invidious discrimination.” (Ibid.) There is no case authority included none cited by Plaintiff - that the allegations of the Second Amended Complaint (the gender and/or sexual orientation medical history questions alleged) would amount to unreasonable, arbitrary or invidious discrimination. Additionally, notwithstanding Plaintiff’s claim that he was denied “advantages” and “privileges” as a result of the conduct, he has not pled that he was denied medical services. “The Unruh Civil Rights Act is ‘confined to discriminations against recipients of the ‘business establishment’s ... goods, services or facilities.’” (*Smith v. BP Lubricants USA Inc.* (2021) 64 Cal.App.5th 138, 149, citing *Isbister v. Boys’ Club of Santa Cruz, Inc.* (1985) 40 Cal.3d 72, 83 fn. 12; compare *Minton v. Dignity Health* (2019) 39 Cal.App.5th 1155 (denial of medical service).) Medical groups, hospitals, and university health systems operating public accommodations (like UCLA Health) are considered to be business establishments under the Act (See *Leach v. Drummond Medical Group, Inc.* (1983) 144 Cal. App. 3d 362.)

Unlike the FAC, the SAC now alleges facts that indicate that there was a difference in the quality and character of services rendered. The SAC still alleges the question was asked after medical services were rendered professionally. (SAC ¶¶ 29-31.) However, Plaintiff now contends that while female patients received neutral, consent-based intake charting, the Plaintiff’s permanent medical record contained a free-form, physician-authored characterization (“Denies: sex with men”). The complaint details this phrase as structurally stigmatizing and framed as a skeptical denial rather than neutral clinical indexing. (SAC ¶¶ 42-46.) This sufficiently alleges a discriminatory “distinction” affecting the character and quality of medical services. These allegations are sufficient to plead a claim under the Unruh Act.

The Court overrules the demurrer to the Second Amended Complaint.

2. Plaintiff ‘s Motion for Leave to File 3rd Amended Complaint

Plaintiff’s Motion for Leave to Amend to add a Cause of Action for *Breach of Implied Covenant of Good Faith and Fair Dealing* against The Regents of the University of California only, and to add a Cause of Action for *Unlawful Recording of a Confidential Communication* under California Penal Code §§ 632 and 632.01 against Defendant Samuel Haslam, M.D. only, is GRANTED.

Plaintiff sufficiently pleads the existence of contract supporting the cause of action for *Breach of Implied Covenant of Good Faith and Fair Dealing* in the proposed Third Amended Complaint at ¶69, stating, “At the time of the clinical encounter on October 13, 2023, Plaintiff was an enrolled patient of UCLA Health. Plaintiff’s enrollment was governed by written agreements, including UCLA Health’s Patient Rights and Responsibilities policy and the patient intake agreement executed or acknowledged at enrollment, which constitute written contracts within the meaning of Code of Civil Procedure § 337.” These allegations are sufficient at the pleading stage to allege the existence of a contract.

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Defendant does not offer legal authority that the proposed cause of action for *Unlawful Recording of a Confidential Communication* is insufficiently pled. The 3rd Amended Complaint states, “On information and belief, Dr. Haslam recorded all or a portion of the Oct 13, 2023, consultation through an ambient electronic recording or AI-assisted documentation device, without prior disclosure to or consent from Plaintiff.” (3rd Amended Complaint, ¶ 81.) “This is sufficient at the pleading stage to allege the unlawful recording cause of action under Penal Code § 632 or 632.7.

Defendant is granted leave to file an answer to the 3rd Amended Complaint on or before August 14, 2026.

Plaintiff is ordered to serve notice of the Court’s rulings.